



POLICE DEPARTMENT

January 26, 2026

Jonathan Darche
Executive Director
New York City Civilian Complaint Review Board
100 Church Street, 10th floor
New York, NY 10007

POLICE COMMISSIONER'S PENALTY DEPARTMENTURE

Re: CCRB Case No. 202407850 (Incident Date: August 4, 2024) regarding Police Officer Anthony Ramirez, Tax No. 978733 (PODS Case No. C-036135)

Dear Mr. Darche:

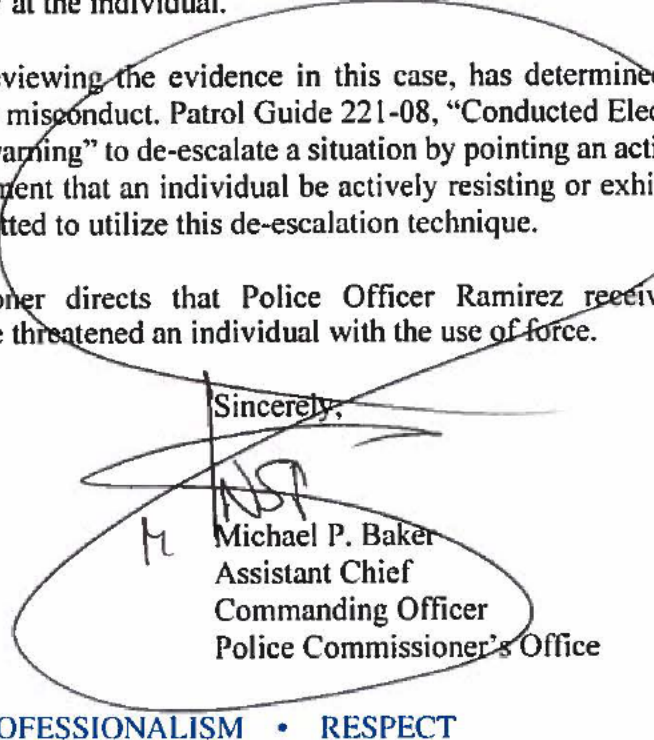
The Police Commissioner has reviewed the recommendation of the Civilian Complaint Review Board (CCRB) regarding the disciplinary matter involving Police Officer Anthony Ramirez and has determined that the proposed penalty of a Schedule "B" Command Discipline is not warranted.

In this matter, Officer Ramirez and his partner stopped an individual for operating a vehicle with heavily tinted windows. When the officers informed the individual that he was going to be placed into custody, the individual did not comply with multiple orders from the officers. Officer Ramirez then pointed his conducted electrical weapon (CEW) at the individual to try and gain voluntary compliance. The CCRB substantiated an allegation of improper threat of force against Officer Ramirez for his action of pointing his CEW at the individual.

The Police Commissioner, after reviewing the evidence in this case, has determined that Officer Ramirez's actions do not constitute misconduct. Patrol Guide 221-08, "Conducted Electrical Weapons" permits officers to use a "laser warning" to de-escalate a situation by pointing an activated CEW at an individual. There is no requirement that an individual be actively resisting or exhibiting active aggression before an officer is permitted to utilize this de-escalation technique.

Therefore, the Police Commissioner directs that Police Officer Ramirez receive no disciplinary action for the allegation that he threatened an individual with the use of force.

Sincerely,


Michael P. Baker
Assistant Chief
Commanding Officer
Police Commissioner's Office

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